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বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ

আপীল সম্পর্কিত
ফৌজদারী

জেলা - CUMILLA

ফৌজদারী কার্যবিধি আইনের ধারার অধীনের রিভিশন
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Md. Mijan আবেদনকারী

মাধ্যম Mr. Abdullah Al Ashik, Adv.

বনাম

The State and another

প্রতিপক্ষ

Mr. Mohammad Taifoor Kabir, DAG with Mr. Md. Lokman Hossain and Mr. Md. Hatem Ali, AAG

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডদেশ

Present:

Mr. Justice Mamnoon Rahman

আপীল আদালত

তারিখ

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কাজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
01	<u>09.01.2024</u>	In preferring the Criminal Revision under section 439 and read with Section 435 of the Code of Criminal Procedure there had been a delay of 363 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 363 days in filing the revision is hereby condoned subject to any just objection raised by the opposite-parties at the time of disposal of the rule. Let the records of the case be called for and a rule be issued calling upon the opposite parties to show cause as to why the impugned judgment and order of conviction and sentence dated 06.11.2022 passed by the Court of learned 5th Additional Sessions Judge, Cumilla in Criminal Appeal No. 129 of 2020 allowing the appeal in part and thereby modifying the judgment and order of conviction dated 05.06.2013 passed by the Court	

of learned Senior Judicial Magistrate, Cumilla in Chandina Police Station Case No. 04 dated 11.07.2008 Corresponding to G.R case No. 99 of 2008 (Chandina) under section 457/380/34 of the Penal Code, 1860 sentencing him to suffer 03 (three) years rigorous imprisonment and also to pay fine of Tk. 2,000/- (Two thousand) only in default to suffer 02 (Two) months simple imprisonment, should not be set aside, and/or pass such other or further order or orders as to this Court may seem fit and proper.

The Rule is made returnable within 4(four) weeks from date.

Pending hearing of the Rule, let the accused petitioner, namely Md. Mijan, son of late Mannan Mia be enlarged on ad-interim bail for a period of 1(one) year from date, subject to furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Cumilla.

The office is directed to serve notices upon the opposite parties by usual course as well as by registered post with acknowledgement receipt.

Let the realization of fine be stayed.

The petitioner is directed to put in the requisites forthwith.

(Mamnoon Rahman, J)
